

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
LASHARN WASHINGTON, XAVIER WASHINGTON
and JEREMY WILLIAMS,

Plaintiffs,

**SUMMONS WITH
COMPLAINT**

-against-

Index No.

P.O. VADIM OSILENKER, P.O. DANIEL WHITE, P.O.
KEVIN ALLEN, P.O. SERGEI KONOIKO, P.O. FRANK
KISH, P.O. CHRISTOPHER ZALESKI,

Defendants.
----- X

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on plaintiffs' attorney, within 20 days after the service of this summons, exclusive of the day of service, or within thirty 30 days after the service is complete if this summons is not personally delivered to you within the State of New York.

Plaintiffs designate Kings County as the place of trial.

The basis of venue is the residence of plaintiffs. Plaintiffs reside at: 2719 West 33rd Street Apt 7G, Brooklyn, NY 11224. Defendants' address is: 100 Church Street, New York, NY 10007.

NOTICE: This action is to recover damages for injuries to plaintiffs caused by defendants' intentional and negligent actions. The relief sought is monetary damages.

Upon your failure to appear, judgment will be taken against you by default for an amount to be determined, with interest and the costs of this action.

DATED: June 6, ~~2018~~ 2019
New York, New York



Robert Marinelli, Esq.
305 Broadway, Suite 1001
New York, New York 10007
(212) 822-1427

Attorney for Plaintiffs

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
LASHARN WASHINGTON, XAVIER WASHINGTON
and JEREMY WILLIAMS,

COMPLAINT

Plaintiffs,

Index No.

-against-

Jury Trial Demanded

P.O. VADIM OSILENKER, P.O. DANIEL WHITE, P.O.
KEVIN ALLEN, P.O. SERGEI KONOIKO, P.O. FRANK
KISH, P.O. CHRISTOPHER ZALESKI,

Defendants.

----- X
Plaintiffs LASHARN WASHINGTON, XAVIER WASHINGTON and JEREMY
WILLIAMS, by their attorney, Robert Marinelli, Esq., complaining of the defendants,
respectfully alleges as follows:

PRELIMINARY STATEMENT

1. Plaintiffs bring this action for compensatory damages, punitive damages, and attorneys' fees pursuant to 42 U.S.C. §§1983 and 1988 for violations of their civil rights, as said rights are secured by said statutes and the Constitution of the United States.

JURISDICTION AND VENUE

2. The cause of action arose within Kings County, within the State of New York.
3. Plaintiff LASHARN WASHINGTON is a resident of Kings County.
4. Plaintiff XAVIER WASHINGTON is a resident of Kings County.
5. Plaintiff JEREMY WILLIAMS is a resident of Kings County.

PARTIES

6. The Plaintiff LASHARN WASHINGTON ("Lasharn") is and was at all times

relevant herein a resident of Kings County, New York.

7. The Plaintiff XAVIER ("Xavier") WASHINGTON is and was at all times relevant herein a resident of Kings County, New York.

8. The Plaintiff JEREMY WILLIAMS ("Jeremy") is and was at all times relevant herein a resident of Kings County, New York.

9. That at all times hereinafter mentioned, the individually named defendants, P.O. VADIM OSILENKER, P.O. DANIEL WHITE, P.O. KEVIN ALLEN, P.O. SERGEI KONOIKO, P.O. FRANK KISH, P.O. CHRISTOPHER ZALESKI, (collectively, "defendants") were duly sworn officers of the NYPD and were acting under the supervision of the NYPD and according to their official duties.

10. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages, and/or practices of the State of New York and/or the City of New York.

11. Each and all of the acts of the defendants alleged herein were committed by said defendants while acting within the scope of their employment by defendant CITY OF NEW YORK.

STATEMENT OF FACTS

12. On June 10, 2016, Xavier was leaving the apartment of his aunt Lasharn.

13. Lasharn lives with her boyfriend, Jeremy, at her apartment located at 2719 West 33rd Street, Brooklyn, New York 11224. On the day of the incident, Xavier was staying with his aunt.

14. When Xavier stepped outside, defendants, including began to attack him.
15. Defendants punched Xavier and threw him to the ground.
16. While Xavier was on the floor, the officers continued to punch and kick him.
17. Xavier shouted for his aunt to come to the door.
18. When Lasharn opened her door, she saw defendants beating her nephew, Xavier.
19. When Lasharn questioned the officers about what was happening, she received no response.
20. Eventually, several police officers pushed Lasharn aside and entered her home.
21. She asked them to show her a warrant, but they refused to do so.
22. Lasharn started to record the interaction with her phone, but the officers took her phone away.
23. Defendants told Jeremy to get against the wall.
24. Even though Jeremy went to stand against the wall, the officer still proceeded to punch him in the face.
25. Jeremy went down to the floor, and defendants put his knee in Mr. Xavier's back and handcuffed him.
26. The officers arrested plaintiffs and took them to the precinct.
27. The officers did not allow Lasharn to put on shoes or a bra.
28. Xavier asked for medical treatment on multiple occasions, including when the officers were driving them to the precinct and while he was at the precinct.

29. Xavier's requests for medical attention were ignored.
30. Plaintiffs remained at the precinct for several hours.
31. The officers took Lasharn to Central Booking, Lasharn was arraigned and bail was set.
32. Lasharn was searched by a male officer, even when she requested a female officer.
33. This was Lasharn's first arrest.
34. Plaintiffs were taken to Central Booking, then to the Manhattan Detention Complex.
35. Plaintiffs were held in custody for approximately five or six days.
36. When plaintiffs went to court on June 16, they did not see a judge, and all of their cases were dismissed.
37. When plaintiffs returned home, they discovered that the officers had ransacked the apartment.
38. Several items of furniture were broken, including but not limited to, cabinets, Ms. Washington's seven-year-old daughter's vanity, her ten-year-old son's PlayStation, television, and toilet.
39. Defendants threw plaintiffs' personal effects on the floor and emptied kitchen grease, shampoos, and lotions onto the floor.
40. Defendants also threw a package of Epsom salt on the bed, which ruined the mattress.

AS AND FOR A FIRST CAUSE OF ACTION

(42 U.S.C. § 1983)

41. Plaintiffs repeat, reiterate, and reallege each and every allegation with the same force and effect as if fully set forth herein.

42. Defendants, by their conduct toward plaintiffs alleged herein, violated plaintiffs rights' guaranteed by 42 U.S.C. § 1983, the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

43. As a direct and proximate result of this unlawful conduct, plaintiffs sustained the damages hereinbefore alleged.

AS AND FOR A SECOND CAUSE OF ACTION
(False Arrest/Unlawful Imprisonment under Federal Law)

44. Plaintiffs repeat, reiterate, and reallege each and every allegation with the same force and effect as if fully set forth herein.

45. Defendants arrested plaintiffs without probable cause, causing them to be detained against their will for an extended period of time and subjected to physical restraints.

46. Defendants caused plaintiffs to be falsely arrested and unlawfully imprisoned.

47. Defendants violated the Fourth and Fourteenth Amendments because they arrested plaintiff without probable cause.

48. As a result of the foregoing, plaintiffs are entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs, and disbursements of this action.

AS AND FOR A THIRD CAUSE OF ACTION
(Unreasonable Search under Federal Law)

49. Plaintiffs repeat, reiterate, and reallege each and every allegation with the same force and effect as if fully set forth herein.

50. Defendants unreasonably searched plaintiffs thereby causing plaintiffs to suffer emotional distress, embarrassment, humiliation, and loss of privacy.

51. Defendants violated the Fourth and Fourteenth Amendments due to their unreasonable search.

52. As a result of the foregoing, plaintiffs are entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs, and disbursements of this action.

AS AND FOR A FOURTH CAUSE OF ACTION
(Excessive Force under Federal Law)

53. Plaintiff repeats, reiterates, and realleges each and every allegation with the same force and effect as if fully set forth herein.

54. The level of force employed by defendants was excessive, objectively unreasonable, and otherwise in violation of plaintiff's constitutional rights.

55. As a result of the aforementioned conduct, plaintiff was subjected to excessive force and sustained physical injuries, pain and mental anguish, and emotional distress.

56. As a result of the foregoing, plaintiff is entitled to compensatory damages in an

amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs, and disbursements of this action.

AS AND FOR A FIFTH CAUSE OF ACTION
(Medical Indifference under Federal Law)

57. Plaintiff repeats, reiterates, and realleges each and every allegation with the same force and effect as if fully set forth herein.

58. Defendants intentionally delayed in responding to plaintiff's requests for medical treatment and kept him confined in a manner that interfered with plaintiff's medical care and exacerbated plaintiff's serious medical condition.

59. Defendants acted with deliberate indifference to plaintiff's serious medical needs, causing the unnecessary and wanton infliction of pain proscribed by the Eighth Amendment.

60. As a result of the foregoing, plaintiff is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs, and disbursements of this action.

AS AND FOR A SIXTH CAUSE OF ACTION
(Failure to Intervene under Federal Law)

61. Plaintiffs repeat, reiterate, and reallege each and every allegation with the same force and effect as if fully set forth herein.

62. Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

63. Accordingly, the defendants who failed to intervene violated the Fourth, Fifth and Fourteenth Amendments.

64. As a result of the foregoing, plaintiffs are entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs, and disbursements of this action.

PRAYER FOR RELIEF

WHEREFORE, plaintiffs demand judgment and prays for the following relief, jointly and severally, against the defendants:

- A. full and fair compensatory damages in an amount to be determined by a jury;
- B. punitive damages against the individual defendants in an amount to be determined by a jury;
- C. reasonable attorneys' fees and the costs and disbursements of this action; and
- D. such other and further relief as appears just and proper

DATED: June 6, 2019
New York, New York



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Attorney for Plaintiffs